



Stephen Cooke <stephencooke.c@gmail.com>

FW: Cooke & Cooke - Family Law Matters

12 messages

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Fri, Jun 7, 2024 at 9:52 AM

To: "Mr Stephen Cooke (Client)" <stephencooke.c@gmail.com>

Stephen

Here is the first of two emails I got after our call of this afternoon.

I have read the letter but not yet reviewed the contents of the dropbox link below. I shall do so to check they have provided the documents requested. I presume you prefer Hugh to go through then statements in details rather than me?

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229**E:** mshepherd@ramsdenlaw.com.au

A SMARTER
PERSPECTIVE

T: 1300 749 709 | W: [ramsdenfamilylaw.com.au](https://www.ramsdenfamilylaw.com.au)

A: Level 6, [15 Castlereagh Street](#), Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

From: Tayleh Soames <tsoames@delaneyroberts.com.au>
Sent: Friday, June 7, 2024 3:33 PM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Anna Roberts <aroberts@delaneyroberts.com.au>; Amy Szlicht <aszlicht@delaneyroberts.com.au>
Subject: Cooke & Cooke - Family Law Matters

You don't often get email from tsoames@delaneyroberts.com.au. [Learn why this is important](#)

Dear Colleagues

Please see our **attached** letter dated 7 June 2024. Our client's disclosure documents can be accessed in the below Dropbox link:

<https://www.dropbox.com/scl/fo/yuh87dw07yqqwyjkhls6q/AAy1AFy7HDKNzrJroSLKQLQ?rlkey=1lsgrfoz32cxbuygd5030ij67&st=wxmbha5e&dl=0>

Yours faithfully

TAYLEH SOAMES

Associate Solicitor

LLB GradDipLegPrac, LLM (Applied Law)



T 02 4952 3901

E tsoames@delaneyroberts.com.au

[274 Brunner Road, Adamstown NSW 2289](#)

delaneyrobertsfamilylawyers.com.au

Liability Limited by a scheme approved under Professional Standards Legislation.

NOTICE: This communication may contain information that is confidential and subject to legal professional privilege and/or the Copyright of Roberts Legal Services Group Pty Limited. Confidentiality and privilege is not waived if you are not the intended recipient of this communication.

If you are not the intended recipient of this communication please delete and destroy all copies and e-mail aroberts@delaneyroberts.com.au immediately to advise us of the same. If you are the intended recipient of this communication you must not disclose, copy, distribute or modify this e-mail or any attachments without the authority of Roberts Legal Services Group Pty Limited. Except as required at law, Delaney Roberts Family Lawyers does not represent, warrant and/or guarantee that the integrity of this communication or its attachments has been maintained or that the communication is free of errors, virus, interception or interference. It is the responsibility of the recipient to virus check this e-mail and any attachments.



Letter to Ramsden Family Law (disclosure) 07.06.2024.pdf

220K

Matthew Shepherd <mshpherd@ramsdenslaw.com.au>

To: "Mr Stephen Cooke (Client)" <stephencooke.c@gmail.com>

Fri, Jun 7, 2024 at 9:56 AM

Dear Stephen

Here is the second of the two emails.

I have you in my diary for 11am Tuesdays 11 June in my office (level 6, [15 Castlereagh St, Sydney](#)). Is this still ok for you? I think the original idea was for you and I to meet in person and discuss how your matter can span out. We can also go through the calculations of different options for settlement.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | W: ramsdenfamilylaw.com.au

A: Level 6, [15 Castlereagh Street, Sydney NSW 2000](#)

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

From: Tayleh Soames <tsoames@delaneyroberts.com.au>

Sent: Friday, June 7, 2024 3:37 PM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Cc: Anna Roberts <aroberts@delaneyroberts.com.au>; Amy Szlicht <aszlicht@delaneyroberts.com.au>

Subject: RE: Cooke & Cooke - Family Law Matters

You don't often get email from tsoames@delaneyroberts.com.au. [Learn why this is important](#)

Dear Colleagues

Further to our below email, we also **attach** our client's bank statements for her account ending #2919 evidencing where the sale proceeds of the Manning Street property were applied.

Yours faithfully

TAYLEH SOAMES

Associate Solicitor

LLB GradDipLegPrac, LLM (Applied Law)



T 02 4952 3901

E tsoames@delaneyroberts.com.au

[274 Brunker Road, Adamstown NSW 2289](#)

delaneyrobertsfamilylawyers.com.au

Liability Limited by a scheme approved under Professional Standards Legislation.

NOTICE: This communication may contain information that is confidential and subject to legal professional privilege and/or the Copyright of Roberts Legal Services Group Pty Limited. Confidentiality and privilege is not waived if you are not the intended recipient of this communication.

If you are not the intended recipient of this communication please delete and destroy all copies and e-mail aroberts@delaneyroberts.com.au immediately to advise us of the same. If you are the intended recipient of this communication you must not disclose, copy, distribute or modify this e-mail or any attachments without the authority of Roberts Legal Services Group Pty Limited. Except as required at law, Delaney Roberts Family Lawyers does not represent, warrant and/or guarantee that the integrity of this communication or its attachments has been maintained or that the communication is free of errors, virus, interception or interference. It is the responsibility of the recipient to virus check this e-mail and any attachments.

From: Tayleh Soames

Sent: Friday, June 7, 2024 3:33 PM

To: Mr Matthew Shepherd (Applicant's solicitor) <mshepherd@ramsdenlaw.com.au>

Cc: Anna Roberts <aroberts@delaneyroberts.com.au>; Amy Szlicht <aszlicht@delaneyroberts.com.au>

Subject: Cooke & Cooke - Family Law Matters

Dear Colleagues

[Quoted text hidden]

3 attachments

 **#2919 Jul12-Jan13.pdf**
27K

 **#2919 Jan 13-Jul13.pdf**
26K

 **#2919 Jul13-Jan14.pdf**
26K

Stephen Cooke <stephencooke.c@gmail.com>

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Fri, Jun 7, 2024 at 10:12 AM

Yes, let's keep that appointment. Will see you Tuesday.

Regarding "7. We enclose screenshot of our client's bank account ending #2919 showing receipt of the settlement funds. **Our client cannot provide the balance of the documents as they**

are not in her possession. Our client verily believes that these documents are in your client's possession in a storage area. Your client changed the locks and prohibited access to our client shortly after separation."

Are they serious!? Obviously mediation will not be happening until we have seen these. She removed her financial documents from the cupboard prior to her leaving the marital home.

This excuse simply will not do for me in the slightest.

Regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Sat, Jun 8, 2024 at 4:48 AM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Matthew,

When I had signed the order I was under the impression my previous lawyer had seen the financial situation surrounding the condo and that there were no concerns.

I was also led to believe agents appointed to the sale of the home would be neutral parties.

Furthermore, both the agent and Heather appear to be pushing along the sale of the home in an unreasonable manner.

I should not have been made wholly responsle for the junk removal cost.

Styling/staging should have been included in the cost of the marketing.

The sales agent ought to have instructed both Heather and I to stage the barren rooms for obvious reasons especially given his most recent email to me in this regard.

The sales agent should not have leaned on me to pay for repairs, the order is quite clear as to how those costs are to be handled

There is a TON of underhanded shit surrounding my matter and the sale of the marital home excluding obviously yourself as your just stepping in and have been completely transparent with me.

I am not complying with the orders to sell the home at this time. I was under the impression when I signed the order my previous lawyer had done their due diligence in terms of vetting the condo finances hidden by way of order.

I also do not feel comfortable selling the home or heading to mediation without a forensic account first vetting the condo finances dating back to 2018.

I have started on my affidavit. Please support me.

I will not send any emails to Mike or Heather, but there communications to me until my interests have been what I deem to be met reasonably, I simply will not be responding.

Regards,

Stephen

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Sat, Jun 8, 2024 at 4:49 AM

To: Neill Cooke <cooke.neill@gmail.com>

See below.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Sat, Jun 8, 2024 at 5:06 AM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

And as we need to advise the mediator of our intent to cancel before the 10th of June to avoid a cancellation fee and because we cannot possibly get the level of disclosure before then, my instruction is to cancel the mediation.

Regards,

Stephen

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Sat, Jun 8, 2024 at 2:38 PM

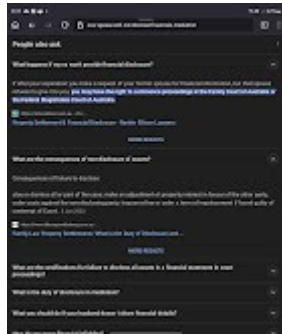
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Please advise the impact of having signed the interim property order in regards to not bringing a costs order forward.

I wish to proceed the attached because I have not (as ludicrous as it actually is) been provided with the financial statements for the Southport condo.

On Sat, 8 June 2024, 10:48 am Stephen Cooke, <stephencooke.c@gmail.com> wrote:

[Quoted text hidden]



Screenshot_20240608_203148_Firefox.jpg
607K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Sat, Jun 8, 2024 at 2:39 PM

The order mentions agreeing not to bring a costs order forward
[Quoted text hidden]

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Mon, Jun 10, 2024 at 3:06 AM

Dear Stephen

See my answers to your questions below in red.

I have been through the other side's letter of Friday to see what they say they have provided and not provided. I have not had time over this public holiday long weekend to go through the dropbox to see if they have actually provided them. That would be a time consuming and costly exercise and you might have Hugo check as part of his brief.

I attach a copy of my letter requesting the documents you wanted. I have notated it in red to show what they say they have sent and not sent.

In respect of what they say they have provided and not provided, I make the following comments:

1. They say accounts ending #193 and #2594 are your accounts. If so, do you have statements? If not, ask for them from the bank.
2. Manning Street sale from 2012. We asked for documents showing monies received and where applied. They have just given loan statements for loan #2929 from July 2012 to January 2014- which is after the sale so cannot be the balance paid out on the sale? . Remember this is a potential double-edged sword. I think you wish to check where the sale proceeds went. However you advise Heather had this prior to your relationship. If there were any net sale proceeds, it assists her in arguing she made greater pre relationship contributions. We can do some Queensland searches to see the date and sale price of the sale.
3. 703/1 Como Street. We asked for the loan statements for Como Street Southport for 12 months from date of purchase. This is another pre relationship contribution of Heather. Her affidavit of 3.4.24 at para 85 refers to her buying it in 2008 for \$310,000 with a 5% deposit (\$15,500) and a 95% loan (\$294,500? I am not sure she funded stamp duty and legal costs of the purchase). If she wants to say it is important in assessing contributions, she will need to provide the evidence to show it had equity. I suggested you might not want to encourage her to look at this further by requesting documents. You explained you wanted to know the mortgage balance at cohabitation to see how the mortgage has varied since then.
4. Account #5055. They say she does not have statements. The subpoenaed documents show there is a joint Westpac account #6405055. Can you check whether you can get it from the bank.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | **W:** ramsdenfamilylaw.com.au

A: Level 6, [15 Castlereagh Street, Sydney NSW 2000](#)

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Saturday, June 8, 2024 8:40 PM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Subject: Re: FW: Cooke & Cooke - Family Law Matters

The order mentions agreeing not to bring a costs order forward Are you referring to Order 14 of 11.4.24 ? It says all extant financial applications are withdrawn and dismissed and there is no orders as to costs. This is the costs of your earlier documents – not any subsequent ones. It means you cannot seek costs of the interim financial orders you sought in your Initiating Application filed before 11.4.24. Either of you are entitled to seek costs for any subsequent applications. Remember costs orders are not generally made in family law. You have to be able to fit within one of the s117 exceptions such as being wholly successful or wholly unsuccessful. This order as part of the 11.4.24 is standard as the interim financial issues at that time were resolved by agreement in the consent orders - and they reflect compromises made by both of you. Normally, matters resolved by agreement and consent orders are settled on the basis of no costs.

On Sat, 8 June 2024, 8:38 pm Stephen Cooke, <stephencooke.c@gmail.com> wrote:

Please advise the impact of having signed the interim property order in regards to not bringing a costs order forward. See me comment above.

I wish to proceed the attached because I have not (as ludicrous as it actually is) been provided with the financial statements for the Southport condo. I am not sure what you mean by wishing to proceed with the attached. The only attachment are some google searches. We can discuss this tomorrow.

On Sat, 8 June 2024, 10:48 am Stephen Cooke, <stephencooke.c@gmail.com> wrote:

Hi Matthew, These questions are long and interconnected. We can discuss tomorrow.

[Quoted text hidden]

[Quoted text hidden]

 docs received from os 7.7.24.docx
929K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshpherd@ramsdenlaw.com.au>

Mon, Jun 10, 2024 at 11:00 AM

Hi Matthew,

I have run my matter by ChatGPT, see below for discussion tomorrow.

Context and Concerns:

You are currently under a court order to sell the marital home located at 1/213 Morgan Street, Merewether NSW by July 11th, 2024. This decision was based on the understanding that all necessary financial disclosures had been made, including those related to a condo owned by your wife, Heather. At the time you signed the order, you were under the impression that your previous lawyer had done their due diligence to investigate and protect your interests regarding the condo. However, it has since come to light that Heather has not provided the financial statements for the condo. This lack of disclosure presents several significant concerns:

1. Incomplete Financial Picture:

- *Without the financial details of the condo, you lack a comprehensive view of the marital assets and liabilities. This condo, valued between \$400,000 and \$500,000 with an outstanding mortgage of approximately \$235,000, is a substantial part of the marital estate. Not knowing the exact financial status of the condo (e.g., mortgage details, any rental income, or additional expenses) undermines your ability to make informed decisions about the settlement.*

2. Potential Financial Misconduct:

- *There is a suspicion that Heather may have transferred funds from joint accounts to the condo account or to her family members. This could mean that marital funds are being used in ways that reduce the asset pool available for equitable distribution. Specifically, there is concern that Heather's mother might use these transferred funds to purchase the marital home, effectively allowing Heather to retain control over it indirectly.*

3. Conflicts of Interest with Real Estate Agents:

- *The real estate agents suggested by Heather have potential conflicts of interest. One agent is a patient of Heather's close friend and business partner, Rohan, while another manages the rental property where Heather currently resides. These connections could influence the agents to act in Heather's favor, possibly resulting in a lower sale price for the marital home.*

4. Inadequate Marketing Strategy:

- *The current agent, possibly under Heather's influence, has recommended against staging or making cosmetic improvements to the home. Other agents have suggested that such enhancements could significantly increase the sale price. Not following these recommendations might lead to the home selling for less than its fair market value, which would adversely affect the proceeds you are entitled to receive.*

Legitimate Reasons for Concerns:

1. Equitable Distribution of Assets:

- *Ensuring that all financial disclosures are made before the sale is crucial for an equitable distribution of assets. If the condo's financials are not disclosed, the division of proceeds and other assets could be unfairly skewed, leaving you at a financial disadvantage.*

2. Legal and Ethical Violations:

- *Heather's refusal to disclose financial information is a violation of the legal obligation to provide full and frank disclosure in family law matters. This non-compliance could be seen as an attempt to conceal assets or manipulate the settlement process, which has serious legal and ethical implications.*

3. Future Litigation Risks:

- *Proceeding with the sale without understanding the condo's finances could lead to future legal disputes. If financial misconduct is discovered later, it could necessitate additional litigation, incurring further costs and delays. This situation can be emotionally and financially draining and could prolong the resolution of your property settlement.*

4. Financial Stability:

- *The \$200,000 interim property settlement is intended to provide financial stability until the final settlement is reached. However, without complete financial disclosures, you may not be able to cover all your expenses, including the \$90,000 debt you borrowed for legal fees. Ensuring that the financial settlement reflects the true value of all assets is essential for maintaining your financial stability.*

Recommendations:

1. Immediate Legal Action:

- *Schedule an urgent meeting with your lawyer to address the lack of financial disclosures. Clarify why the condo's financials were not reviewed and discuss filing a motion to delay the sale until full disclosures are made.*

2. File a Motion to Amend or Stay the Order:

- *Work with your lawyer to file a motion with the court to amend or stay the order for the home sale, citing the need for complete financial disclosure. Emphasize that you signed the order under the misunderstanding that all necessary financial investigations were complete.*

3. Engage a Forensic Accountant:

- *Hire a forensic accountant to review the available financial records and trace any potentially hidden transactions. This can provide evidence of any misconduct and strengthen your case for a fair settlement.*

4. Leverage Mediation:

- *Use the upcoming mediation session on June 18th to push for the disclosure of the condo's financials as a primary agenda item. Negotiate clear timelines and consequences for non-disclosure to ensure compliance.*

5. Document All Requests:

- *Keep detailed records of all formal requests for financial disclosures and any refusals or non-compliance by Heather. This documentation can be critical in court proceedings to demonstrate your efforts to obtain necessary information.*

6. Consider Changing Legal Representation:

- *If you feel your current lawyer has not adequately protected your interests, consider seeking a second opinion or changing your legal representation. Ensure that your new lawyer is proactive in addressing your concerns and advocating for your interests.*

By taking these steps, you can address the significant concerns regarding the lack of financial disclosure and work towards ensuring a fair and equitable property settlement.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Neill Cooke <cooke.neill@gmail.com>, Sheila Cooke <sheilacooke.c@gmail.com>

Mon, Jun 10, 2024 at 11:04 AM

See below. Point **4. Financial Stability** specifically.

----- Forwarded message -----

From: **Stephen Cooke** <stephencooke.c@gmail.com>
Date: Mon, Jun 10, 2024 at 5:00 PM
Subject: Re: FW: Cooke & Cooke - Family Law Matters
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Mattew,

I have run my matter by ChatGPT, see below for discussion tomorrow.

Context and Concerns:

You are currently under a court order to sell the marital home located at 1/213 Morgan Street, Merewether NSW by July 11th, 2024. This decision was based on the understanding that all necessary financial disclosures had been made, including those related to a condo owned by your wife, Heather. At the time you signed the order, you were under the impression that your previous lawyer had done their due diligence to investigate and protect your interests regarding the condo. However, it has since come to light that Heather has not provided the financial statements for the condo. This lack of disclosure presents several significant concerns:

1. Incomplete Financial Picture:

- *Without the financial details of the condo, you lack a comprehensive view of the marital assets and liabilities. This condo, valued between \$400,000 and \$500,000 with an outstanding mortgage of approximately \$235,000, is a substantial part of the marital estate. Not knowing the exact financial status of the condo undermines your ability to make informed decisions about the settlement.*

[Quoted text hidden]

[Quoted text hidden]

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Tue, Jun 11, 2024 at 9:10 AM

To: Tayleh Soames <tsoames@delaneyroberts.com.au>

Cc: Anna Roberts <aroberts@delaneyroberts.com.au>, Amy Szlicht <aszlicht@delaneyroberts.com.au>

Dear Colleagues

Your client's financial statement attached to your email of 3 June shows one super account being QSuper with a value of \$274,0005.

We attach a screenshot showing a value of \$330,454. Could you please advise:

1. the current balance of your client's member's account in QSuper
2. Provide document verifying that amount
3. Has she had member's accounts in any other funds for the period 1 January 2023 to date?

Regards,

Matthew Shepherd

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au<mailto:>

[cid:image002.png@01DABC11.16C2EBF0]

[cid:image003.png@01DABC11.16C2EBF0]

T: 1300 749 709 | W: ramsdenfamilylaw.com.au

A: Level 6, 15 Castlereagh Street, Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information<<https://ramsdenlaw.com.au/email-disclaimer/>>

Liability limited by a scheme approved under Professional Standards Legislation

[cid:image004.png@01DABC11.16C2EBF0]<<https://calendly.com/mshepherd-iby>>

From: Tayleh Soames <tsoames@delaneyroberts.com.au>

Sent: Friday, June 7, 2024 3:33 PM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Cc: Anna Roberts <aroberts@delaneyroberts.com.au>; Amy Szlicht <aszlicht@delaneyroberts.com.au>

Subject: Cooke & Cooke - Family Law Matters

You don't often get email from tsoames@delaneyroberts.com.au<mailto:tsoames@delaneyroberts.com.au>. Learn why this is important<<https://aka.ms/LearnAboutSenderIdentification>>

Dear Colleagues

Please see our attached letter dated 7 June 2024. Our client's disclosure documents can be accessed in the below Dropbox link:

<https://www.dropbox.com/scl/fo/yuh87dw07yqqwyjkhls6q/AAy1AFy7HDKNzrJroSLKQLQ?rlkey=1lsgrfoz32cxbuygd5030ij67&st=wxmbha5e&dl=0>

Yours faithfully

TAYLEH SOAMES
Associate Solicitor
LLB GradDipLegPrac, LLM (Applied Law)

[cid:image005.jpg@01DABC11.16C2EBF0]

T 02 4952 3901

E tsoames@delaneyroberts.com.au<<mailto:tsoames@delaneyroberts.com.au>>

274 Brunner Road, Adamstown NSW 2289
delaneyrobertsfamilylawyers.com.au<<https://delaneyrobertsfamilylawyers.com.au>>

Liability Limited by a scheme approved under Professional Standards Legislation.

NOTICE: This communication may contain information that is confidential and subject to legal professional privilege and/or the Copyright of Roberts Legal Services Group Pty Limited. Confidentiality and privilege is not waived if you are not the intended recipient of this communication.

If you are not the intended recipient of this communication please delete and destroy all copies and e-mail aroberts@delaneyroberts.com.au<<mailto:aroberts@delaneyroberts.com.au>> immediately to advise us of the same. If you are the intended recipient of this communication you must not disclose, copy, distribute or modify this e-mail or any attachments without the authority of Roberts Legal Services Group Pty Limited. Except as required at law, Delaney Roberts Family Lawyers does not represent, warrant and/or guarantee that the integrity of this communication or its attachments has been maintained or that the communication is free of errors, virus, interception or interference. It is the responsibility of the recipient to virus check this e-mail and any attachments.

5 attachments



image002.png
30K



image003.png
14K



image004.png
6K



DELANEY ROBERTS
SPECIALIST FAMILY LAWYERS

image005.jpg
5K



Q Super Screenshot of Balance as at 04.06.24.pdf

176K